IN THE CIRCUIT COURT OF THE EIGHTH JUDICIAL CIRCUIT
IN AND FOR ALACHUA COUNTY, FLORIDA

CHRISTOPHER A. HANSON, individually and as attorney for himself and next friend and attorney for his two minor children,

Petitioners,

v.

UNIVERSITY OF FLORIDA BOARD OF TRUSTEES, and CUSTODIAN OF PUBLIC RECORDS, UNIVERSITY OF FLORIDA,

Respondents.

_____/

CASE NO.: 01-2026-CA-001794

Circuit Civil Division CA4

Judge: Hon. David P. Kreider

PETITIONER'S VERIFIED SUCCESSIVE MOTION TO DISQUALIFY SUCCESSOR JUDGE AND REQUEST FOR ASSIGNMENT OF A JUDGE FROM OUTSIDE THE EIGHTH JUDICIAL CIRCUIT

On Friday, September 18, 2026, at 8:37 a.m., the order reassigning this case to the Honorable David P. Kreider, "before whom all matters will be heard," was e-filed and served (Filing 257349132). The Court then granted Respondents' motion for protective order, denied a show-cause motion, and denied the Petition, without notice to the parties and without any hearing before him. The last of those orders was e-filed at 3:47 p.m. that day. Petitioner Christopher A. Hanson, self-represented, moves under Rule 2.330, Fla. R. Gen. Prac. & Jud. Admin., section 38.10, Florida Statutes, and Canon 3E(1), Code of Judicial Conduct, to disqualify Judge Kreider, requests assignment of a judge from outside the Eighth Judicial Circuit, and states under oath:

COMPLIANCE WITH RULE 2.330(c)

1. Dates of discovery, Rule 2.330(c)(2). Petitioner discovered the facts in Part II.A on September 18, 2026, when the four orders were served on him by e-mail, and those in Part II.B on September 14 and 16, 2026, when Court Administration's responses and the Zoom participant report were e-mailed to him. (Exs. A, B, D.)

2. Timeliness, Rule 2.330(g). The twentieth day after September 18, 2026 is Thursday, October 8, 2026. This motion is filed within that period.

3. Prior motions, Rule 2.330(c)(4). Petitioner's Verified Motion to Disqualify Trial Judge, filed September 13, 2026, was granted by order dated September 16, 2026 (Filing 257189440). No other motion to disqualify has been granted in this cause. This motion is successive. Petitioner asks the Court to rule on the truth of the facts alleged and supported by the record, as Rule 2.330(i) permits. Petitioner reaffirms the facts in the Motion to disqualify filed on September 13, 2026.

4. Record. Filings are cited by Filing number and PDF page. The September 2 and August 24 transcripts were filed September 14, 2026 as Exhibits E and A to Filing 256954496. Exhibits A through F, which are not in the court file, are filed under a separate Notice of Filing and cited by its page numbers.

PART I. STANDARD

5. Each fact below is a stamp, recital, transcript line, or filing in this record. Those facts are true. They show that this case cannot fairly proceed before this Court, and they "would place a reasonably prudent person in fear of not receiving a fair and impartial trial." *MacKenzie v. Super Kids Bargain Store, Inc.*, 565 So. 2d 1332, 1335 (Fla. 1990) (quoting *Livingston v. State*, 441 So. 2d 1083, 1087 (Fla. 1983)). See Fla. R. Gen. Prac. & Jud. Admin. 2.330; § 38.10, Fla. Stat.

6. Petitioner asks that any ruling on this motion state, for each fact in paragraphs 10 through 25, 29, 30, 33, 34, 35(d), 35(g), 41 through 43, and 46 through 48, whether the Court accepts it as true or rejects it, and the record basis for any fact the Court rejects.

7. The purpose of the section 119.11(1) hearing "is to allow the court to hear argument from the parties and resolve any dispute as to whether there are public records responsive to the request and whether an exemption from disclosure applies in whole or in part to the requested records." *Kline v. Univ. of Fla.*, 200 So. 3d 271, 271 (Fla. 1st DCA 2016).

8. As it specifically relates to the transfer, "[a] successor judge may complete acts left uncompleted by a predecessor but may not weigh and compare testimony heard before the other judge. A successor judge that does not hear all the evidence may only enter a verdict or judgment upon a retrial or if the parties so stipulate on the basis of the record of

the prior proceedings." *Tompkins Land & Housing, Inc. v. White*, 431 So. 2d 259, 260 (Fla. 2d DCA 1983); *accord Alvord v. Alvord*, 572 So. 2d 925, 926 (Fla. 3d DCA 1990).

9. Where a judge began ruling before giving counsel a chance to argue, that conduct, with the judge's comments, ". . . not only denied petitioner due process on the issue of contempt, but created a well-grounded fear on the part of petitioner that he would not receive a fair hearing before the judge." *Wargo v. Wargo*, 669 So. 2d 1123, 1125 (Fla. 4th DCA 1996).

PART II. FACTS

A. September 16 through 18, 2026

10. At 10:19:49 a.m. on September 18, 1 hour and 42 minutes after the reassignment was e-filed, the Court signed an Order Granting Motion for Protective Order. It recites: "A hearing was held on August 24, 2026, during which argument from both parties was heard on Respondent's motion." (Filing 257389224 at 1.) That hearing was held before Judge Keim. (8/24 Tr. 1.)

11. At that hearing, Judge Keim announced she would grant the motion: "I am going to grant the Motion for Protective Order. I do believe it's outside the scope." (8/24 Tr. 36:9-11.) The Court did not identify what fell outside the scope. The motion sought protection from all of Petitioner's discovery: interrogatories, requests for admission, a request to produce, and the depositions of Mr. Hines and Professor Bambauer. (Filing 253616687 ¶ 1.)

12. The Court failed to address the relief Petitioner sought at the August 24 hearing despite both parties noticing it for the hearing. Likewise, the order describes Petitioner's July 31 filing (Filing 253756192) only as a "Response in opposition" and addresses neither the cross-motion's argument nor its request for relief. (Filings 254902680, 255482392).

13. The form of that order was contested in writing for 23 days while under Judge Keim. Respondents' proposed order, sent to the judicial assistant on August 25, is titled "Proposed Order Granting Motion to Dispense, Granting MPO & Denying Cross-Motion." (Filing 256954496 at 60, 69.) On August 27, Petitioner objected in writing that the cross-motion "remains pending" and that any order should state the Court's findings

and carry Respondents' pleaded limitation "as you wrote it." (Filing 256954496 at 259-260.)

14. On September 3, Respondents' counsel wrote that "[t]he University does not agree with your proposed order for that hearing." (*Id.* at 60.) Judge Keim entered no written order on the motion in the 23 days from August 24 to her disqualification.

15. Judge Kreider signed one within 1 hour and 42 minutes of reassignment. Its operative sentence is "Respondent's motion for protective order is hereby GRANTED." (Filing 257389224 at 1.) It states no ground and no duration. It adopts neither Respondents' pleaded limit, "until the Court determines the University's compliance with Chapter 119" (Filing 253616687 at 8), nor the ground stated from the bench.

16. At 3:28:12 p.m., 6 hours and 50 minutes after the reassignment was e-filed, the Court signed both the Order Denying Verified Motion for Order to Show Cause and the Order Denying Petition for Writ of Mandamus. (Filings 257408736, 257408968.)

17. The order denying the Petition recites that "[a] Zoom remote hearing was held on the petition on September 2, 2026." (Filing 257408968 at 1.) That hearing was held before Judge Keim, with sworn witnesses. (9/2 Tr. 1; 88:1-17.)

18. The order does not acknowledge that the Court closed the evidence for time before Petitioner completed questioning Defendants' witness. (9/2 Tr. 133:19-24.)

19. The order fails to mention that Petitioner was not given an opportunity to offer his own testimony and evidence. (9/2 Tr. 88:8-9; 133:19-24.)

20. Judge Kreider has presided over no hearing, conference, or proceeding in this case, and no notice of hearing has been served since the reassignment.

21. Petitioner asked four times to be heard or to complete the evidence. None was set for hearing:

    (a) September 2, 2026, 1:34 p.m., email to the judicial assistant and Respondents' counsel, after noting that Daniel Quiros, served with a subpoena, had not testified: "I request the opportunity to depose him or question him at a hearing. Also, I'm

requesting to finish testimony from the other witnesses and offer testimony myself." (Filing 256954496 at 64.)

(b) September 2, 2026, on the record: "I do just want to note that I would like to testify as well." (9/2 Tr. 88:8-9.)

(c) September 7, 2026: "Petitioner requests a hearing if the Court is not inclined to grant the motion on the papers." (Filing 256513029 ¶ 41.)

(d) September 14, 2026: "Unless the Court issues a peremptory writ on the existing record, Petitioner reserves the right to complete the examination of the witnesses, to present his own testimony, and to enforce the subpoena to Daniel Quiros." (Filing 257004764 ¶ 54.)

22. The September 18 orders do not mention Petitioner's Notice of Objection to the in camera submission (Filing 256489625), his proposed protocol order for the inspection (Filing 256318669), his Motion for Entry of Written Orders (Filing 256513029), or the September 2 testimony. The petition order cites no transcript page. Petitioner has not stipulated that a successor judge may decide the Petition on the record of the September 2 hearing.

B. Facts bearing on the Eighth Judicial Circuit

23. Petitioner's public-records requests of September 8 and 11, 2026, to the Eighth Circuit's Court Administration concern the September 2 hearing. Court Administration answered in part on September 14, 2026, and conditioned the rest on prepayment, with any emails retrieved to be reviewed for redaction through "the Circuit's Office of General Counsel." (Ex. A at 4.)

24. On September 16 it wrote that it had "no records responsive to your request," and acknowledged his preservation requests, stating that responsive records are subject to the judicial branch's retention requirements and "are not subject to routine deletion or purging outside those requirements." (Ex. D at 15.) Petitioner reiterates those preservation requests here and further requests that the Court maintain the original files and metadata irrespective of any retention requirements or schedules.

25. The Zoom participant report Court Administration produced shows that the videographer Petitioner arranged for the hearing was, "Removed by host," without being admitted. The report lists the host account as "Judge Donna M. Keim." (Ex. B at 8, 10; Ex. D at 15.)

PART III. GROUNDS

Ground One. The Petition was decided by a judge who heard no witness and no party

26. The Petition was tried on sworn, live testimony before Judge Keim, and Judge Keim was then disqualified. (Filing 257189440.) The successor denied the Petition without hearing any witness or either party, without notice, and without a stipulation, the day the reassignment was served, while none of four requests to be heard or to complete the evidence were addressed. (¶¶ 16-22.)

27. The cross-motion both parties noticed for August 24 has never been ruled on, and the Petition was denied over it. (¶¶ 12, 22.) The Court's focus on Respondents' motions, while failing to address Petitioner's motion, violates due process. See *Wargo*, 669 So. 2d at 1125 (judge who ruled before hearing counsel "denied petitioner due process"); *Kline*, 200 So. 3d at 271 (section 119.11(1) hearing exists "to allow the court to hear argument from the parties").

28. Judge Kreider's finding that all requested public records were produced before suit decides a question that testimony at the hearing could not possibly answer. The finding rests on "the materials generated by the search terms provided to Respondents by Petitioner." (Filing 257408968 at 2.)

29. No witness who ran that search testified. The records custodian testified that he does not perform searches, does not decide what is produced, and does not watch IT run the searches. (9/2 Tr. 129:19-20; 130:3-6, 16-18, 23-24.)

30. The UF IT employee who handled the search, Daniel Quiros (Filing 255904665 at 9, 99), was served with a hearing subpoena on September 1 and did not testify. (Filing 257319768, Ex. A ¶¶ 2-3; Ex. B at 10.) Respondents' witnesses and counsel did not attend the August 3 depositions (Filing 256954496 at 238-239).

31. The protective order barred discovery while the Court failed to allow Petitioner to even complete testimony at the trial. (Filing 257389224.)

32. Petitioner's rehearing motion and Respondents' request for a determination under section 119.12(3) remain for decision. A reasonably prudent person would fear that this judge decided the case prematurely, in violation of Petitioner's due process rights.

Ground Two. The pending objections and requests to complete evidence

33. The petition order rests on the in camera submission (Filing 257408968 at 2) and does not address Petitioner's pending objection and proposed protocol order (¶ 22).

34. Petitioner made this point before the hearing ended on September 2, 2026. He asked "that the production specifically line up with the files that are created and documented in the exhibits." The Court answered, "I've made my ruling," and ended the hearing while Petitioner was speaking about order specifics. (9/2 Tr. 135:14-136:4.)

35. Judge Kreider decided the Petition on a record in which the Court prevented Petitioner from completing Respondents' testimony, all while:

    (a) Ignoring Petitioner's still pending cross-motion (¶ 12);

    (b) Rushing the final hearing on a week's notice over Petitioner's objections (Filing 255637757; Filing 256010098 ¶ 94; Filing 256954496 at 259; 9/2 Tr. 12:3-14);

    (c) Closing the evidence before Petitioner testified;

    (d) Ignoring the statutory requirement for Respondents to identify documents withheld under section 119.07(1)(e) and (f): the custodian testified that the University asserted no exemptions and withheld no documents (9/2 Tr. 121:12-19), while Respondents' counsel transmitted the in camera files to chambers stating that "[t]hese records contain some exempt information" (Filing 256513029 at 22), and no order identifies any record withheld or any exemption;

    (e) Removal of Petitioner's videographer from the September 2, 2026 hearing by the Zoom host account without notice to Petitioner (¶ 25);

    (f) Closing the evidence without testimony from Daniel Quiros (¶ 30);

    (g) Preventing Petitioner from obtaining any discovery into Respondents' shifting numbers and explanations: the custodian swore that UF IT "gathered over 470

pages" (Filing 251907242, Ex. A ¶ 6); Respondents' motion described 479 gathered pages in three categories (Filing 253616687 ¶ 24); UF's file logs 621 more (Filing 255904665 at 273); and Respondents delivered 538 pages to chambers (Filing 257408968 at 1); and

(h) Ultimately excusing Respondents from statutory compliance and even having to answer for the delays and irregularities throughout several months.

36. The Court fails to address the fundamental constitutional rights at issue, Art. I, § 24, Fla. Const., and the lack of evidence that could support the determination the Court made, in a process rushed after a process Respondents delayed and complicated ever since the still unexplained legal review immediately after the request: on April 23, 2026, 28 days after the March 26 request, Respondents wrote, "Your request is undergoing the legal review." (Filing 255904665 at 78.)

37. What was the sudden rush to avoid discovery, hold the final hearing on a week's notice, and close the evidence before the citizen requester completed his examinations or testified himself?

38. These facts would place a reasonably prudent person in fear of not receiving a fair process, and in fear that Respondents will never have to answer questions about the materials located in the search.

PART IV. WHY A JUDGE FROM OUTSIDE THE EIGHTH JUDICIAL CIRCUIT

39. When "the speedy, efficient, and proper administration of justice so requires, the chief judge may request the chief justice of the supreme court to assign temporarily an additional judge or judges from outside the circuit to duty in the court requiring assistance." Fla. R. Gen. Prac. & Jud. Admin. 2.215(b)(4). See Art. V, § 2(b), Fla. Const.

40. The Legislature has named a party's "undue influence over the minds of the inhabitants of the county" as a ground on which a litigant may fear an unfair trial. § 47.101(1)(a), Fla. Stat. It distinguishes "the disqualification or prejudice of a judge of the circuit court" from grounds that permit removal within the circuit. § 47.151, Fla. Stat. Petitioner cites these statutes by analogy; venue remains in Alachua County.

41. The University of Florida reports that "[i]n Alachua County, UF and related entities supported 100,169 jobs and contributed more than $14 billion in output, representing 51% of total county employment and 44% of value-added gross regional product, within the county in 2023," and that "[n]early half of the county's economy is tied directly or indirectly to the university." Brittany Sylvestri, University of Florida contributed $19.57 billion to Florida's economy, supports more than 134,000 jobs, UF News (Feb. 23, 2026), https://news.ufl.edu/2026/02/uf-economic-contribution/.

42. The circuit's published biographies list University of Florida degrees for Judge Kreider (B.A. 1989; J.D. 1992) and for most of the circuit's Alachua County circuit judges, and list Judge James M. Colaw, whom the circuit's judges have elected Chief Judge effective January 5, 2027, as "Adjunct Faculty University of Florida Levin College of Law, Trial Practice." (circuit8.org, Courts & Judges; Chief Judge-Elect James M. Colaw (July 22, 2026); accessed September 25, 2026.)

43. Petitioner's public records request to respondents named six case numbers from his other litigation, among them a mandamus action against the Thirteenth Judicial Circuit, No. 25-CA-10255. (Filing 250752293 at 5.) In the Thirteenth Circuit case, the Florida Supreme Court assigned judges of the Sixth Judicial Circuit to preside. (Ex. C at 12-13 & nn.1-2 (citing Florida Supreme Court Assignment Orders 2026-40 and 2026-63).)

44. The University's Joseph L. Brechner Freedom of Information Project publishes that it "envisions a nation where journalists and citizens can acquire the civic information they need to better their lives, demand accountable government, create a just society, and protect democracy and the republic." (brechner.org/about, archived March 9, 2026.)

45. The facts of the present case and those in the cases mentioned just above evidence a public records and accountability crisis in Florida courts.

46. In the Thirteenth Circuit action, Petitioner seeks the video of the April 4, 2025 hearing in his family case. At that hearing the presiding judge said on the record, "I will go get the camera footage"; when Petitioner later asked her to request it, she answered, "No, sir," and ended the hearing. (Ex. E at 21-23 (Tr. 75:12-16; 193:9-14).) The Thirteenth Circuit's counsel has since withheld that video as "confidential surveillance video footage" and a

security-system record, without an affidavit or other evidence identifying any security system. (Ex. E at 18-20.) That action seeks records bearing on Petitioner's allegations of bias against him in the family case.

47. Petitioner has moved to disqualify the Sixth Circuit judge presiding over that action. (No. 25-CA-010255, Filing 250331305.) That motion was denied. (*Id.*, Order of July 1, 2026.)

48. Similarly, in Petitioner's public records action against The Florida Bar, No. 2025-CA-2469 (Fla. 2d Jud. Cir.), the court did not permit argument or discovery and granted the Bar's motion to dismiss, entering final judgment and finding that "[a]ny Amendment would be futile." (Ex. F at 25.) The authorities on which that order rests do not apply to its facts, and the case is on appeal, No. 1D2026-0728.

49. The Eighth Circuit's Court Administration is itself the custodian of disputed records of the September 2 hearing, including the host-account removal of Petitioner's videographer, and is answering Petitioner's records and preservation requests about that hearing. (¶¶ 23-25.) A judge from outside the circuit would come to this case with no connection to those records or to the University.

50. Judge Keim's rushing of the matters, the excusal of Respondents from answering core questions, and Judge Kreider's hasty closing of the case on incomplete information all raise very serious concerns about the objectivity and fairness of the judicial process in the Eighth Circuit.

RELIEF

51. WHEREFORE, Petitioner respectfully requests that the Court:

(a) rule on this motion before any other matter, *MacKenzie*, 565 So. 2d at 1339-40, determining under Rule 2.330(i) the truth of the facts alleged;

(b) enter an order of disqualification, or of recusal under Rule 2.330(k), and proceed no further in this action;

(c) refer the case to the Chief Judge with Petitioner's request that the Chief Judge ask the Chief Justice, under Rule 2.215(b)(4), to assign a judge from outside the Eighth Judicial Circuit, with hearings by videoconference; and

(d) state, for each fact in paragraphs 10 through 25, 29, 30, 33, 34, 35(d), 35(g), 41 through 43, and 46 through 48, whether the Court finds it true or untrue, and identify the record basis for each fact found untrue and for any determination that the Court can be fair and impartial.

52. Petitioner reserves his right to move under Rule 2.330(j) for reconsideration of the September 18, 2026 orders by the judge who is assigned.

53. This motion is made in good faith and not for purposes of delay.

CERTIFICATE OF CONFERRAL

Petitioner conferred with counsel for Respondents by email on September 25, 2026, at 4:56 p.m., requesting Respondents' position on the relief requested in this motion, including the request for assignment of a judge from outside the Eighth Judicial Circuit. Respondents' counsel has previously declined to confer by telephone. (Filing 256513029 at 12, 15.) As of filing, Respondents had not stated a position.

Respectfully submitted this 25th day of September, 2026.

/s/ Christopher A. Hanson

Christopher A. Hanson, Esq.

Florida Bar No. 44094

[redacted] Tampa, FL [redacted]

[redacted]

Primary: [redacted] Secondary: christophhanson77@gmail.com, truthoverchaos@outlook.com

Self-represented Petitioner

VERIFICATION UNDER SECTION 92.525, FLORIDA STATUTES

Under penalties of perjury, I declare that I have read the foregoing motion, and that the facts stated in it are true. Dated: September 25, 2026.

/s/ Christopher A. Hanson

Christopher A. Hanson

CERTIFICATE OF GOOD FAITH UNDER RULE 2.330(c)(5) AND SECTION 38.10

The undersigned, as counsel of record for Petitioner, certifies that this motion and the statements contained in it are made in good faith. Dated: September 25, 2026.

/s/ Christopher A. Hanson

Christopher A. Hanson, Esq., Florida Bar No. 44094

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been filed via the Florida Courts E-Filing Portal on this 25th day of September, 2026, which will serve: James W. Kirkconnell, Esq. (jameswk@ufl.edu) and Kimberly LoGiurato (klogiurato@ufl.edu), Office of the Vice President and General Counsel, University of Florida, 123 Tigert Hall, Gainesville, FL 32611; and that a copy has been served on the Honorable David P. Kreider the same day, as Rule 2.330(d) and Rule 2.516 require, by email to his judicial assistant, Debbie Spivey (spiveyd@circuit8.org), and to polkl@circuit8.org, the address through which the Order of Reassignment served him.

/s/ Christopher A. Hanson

Christopher A. Hanson, Esq.